

2026 AEA Convention & Trade Show



March 23-26, 2026



Regulatory Rise & Shine

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Requirements for Interference-Tolerant Radio Altimeter Systems



RadAlt proposal

- §91.220 Radio Altimeter Systems
 - (a) After [two years after the initial RA performance deadline], no person may operate an aircraft in the airspace of the 48 contiguous United States and the District of Columbia with a radio altimeter unless the radio altimeter system meets the performance requirements of paragraph (b).
 - (b) The radio altimeter system must operate at an altitude of 0–500 feet above ground level in the interference environment defined in table 1:



RadAlt proposal

- §121.326 Radio Altimeter Systems
 - After [the initial RA performance deadline], no person may operate an aircraft under this part in the airspace of the 48 contiguous United States and the District of Columbia with a radio altimeter unless the radio altimeter system meets the performance requirements of §91.220(b) of this chapter.



RadAlt proposal

- §129.16 Radio Altimeter Systems
 - (a) After [the initial RA performance deadline], no person may operate an aircraft with 30 or more passenger seats or a payload capacity of more than 7,500 pounds under this part in the airspace of the 48 contiguous United States and the District of Columbia with a radio altimeter unless the radio altimeter system meets the performance requirements of §91.220(b) of this chapter.
 - (b) After [two years after the initial RA performance deadline], no person may operate an aircraft under this part in the airspace of the 48 contiguous United States and the District of Columbia with a radio altimeter unless the radio altimeter system meets the performance requirements of §91.220(b) of this chapter.



Timeline

- These regulations would require all aircraft equipped with radio altimeters operating under part 121 and those aircraft with radio altimeters operating under part 129 with 30 or more passenger seats or a payload capacity of more than 7,500 pounds to comply with the minimum performance requirements by the date the Federal Communications Commission authorizes wireless services in the Upper C-band.
- All other aircraft equipped with radio altimeters would be required to comply with the same minimum performance requirements two years later.



Requirements for Interference-Tolerant Radio Altimeter Systems

- AC 20-199, Installation of an Airborne Low-Range Radio Altimeter System
- The Federal Aviation Administration has published this draft advisory circular as a companion document to the notice of proposed rulemaking on radar altimeters.



Airworthiness Standards: Normal Category Airplanes



Airworthiness Standards: Normal Category Airplanes

- Accepted Means of Compliance (MOC); Airworthiness Standards: Normal Category Airplanes (May 20, 2025)
- This document announces the availability of ASTM International (ASTM) consensus standards for use as an FAA-accepted MOC to the applicable airworthiness standards for normal category airplanes. The FAA accepts ASTM F3264–24, “Standard Specification for Normal Category Aeroplanes Certification,” with changes identified in this document.



Airworthiness Standards: Normal Category Airplanes

- Means of Compliance Accepted The FAA accepts only the revisions of the standards referenced in ASTM F3264–24, “Standard Specification for Normal Category Aeroplanes Certification,” as a MOC for part 23, **amendments 23–64 and 23–65,**



NPRM: Normalizing Unmanned Aircraft Systems Beyond Visual Line of Sight Operations



NPRM: Normalizing Unmanned Aircraft Systems BVLoS Operations

Part 108 Aircraft
(Not Type Certificated)



Part 43 Not Applicable



Part 145 Privileges
Not Applicable



Proposal

- BVLOS (Part 108) NPRM
 - Aircraft
 - Package delivery. – 55lbs
 - Aerial surveying/ Civic interest – 110 lbs
 - Agriculture – 1320 lbs
 - Maintenance
 - Part 43 “like” – must follow methods techniques and practices (maintenance manual)
 - Repairman “like” qualified and authorized – but not certificated.



NPRM: Normalizing Unmanned Aircraft Systems BVLoS Operations

- Opportunities:
 - SME (Subject Matter Experts)
 - Electrical
 - Electronic
 - Flight Management System
 - Electronic Conspicuity
 - Right-of-Way (§91.113)
 - SEC. 810 Report: DEVELOPMENT OF LOW-COST VOLUNTARY ADS-B



Final Rule

Falsification, Reproduction, Alteration, Omission, or Incorrect Statements



Falsification, Reproduction, Alteration, Omission, or Incorrect Statements

- Final rule effective November 3, 2025.
- Falsification prohibitions prior to this final rule were found in 14 CFR chapter I, parts 3, 21, 43, 60, 61, 63, 65, 67, 89, 107, 111, 120, 121, 139, 142, and 145.
- The final rule removes the existing falsification regulations from these parts, except part 3, and consolidates them in a new subpart in part 3.



Falsification, Reproduction, Alteration, Omission, or Incorrect Statements

- 14 CFR Part 3, Subpart D: Falsification, Reproduction, Alteration, Omission, or Incorrect Statements



Major Repair and Alteration Data Approval Job aid



Major Repair and Alteration Data Approval

- Revision 7 released on July 24, 2025



NOTE:

- The Major Repair and Alteration Job Aid does not apply to Restricted Category Aircraft. Reference FAA Order 8110.56B, which provides guidance to FAA Flight Standards District Offices and Aircraft Certification Branches for Restricted category aircraft to include both 21.25(a)(1) or 21.25(a)(2) aircraft.



MRADA Rev 7

- This job aid includes additional information to FAA Order 8300.16 (as revised), Major Repair and Alteration Data Approval. The job aid may be accessed at https://drs.faa.gov/browse/OTHER_JOB_AIDS/doctypeDetails
- FAA Order 8300.16 (as revised), Major Repair and Alteration Data Approval may be located at <https://drs.faa.gov/browse/ORDERS/doctypeDetails>



FAA Order 8300.16A CHG 1

- Purpose of This Order.
 - This order provides guidance applicable to the data approval process for major repairs and alterations, including field approvals. The source basis for this order is Title 14 of the Code of Federal Regulations (14 CFR) part 43.



FAA Order 8300.16A CHG 1

- Audience.
 - The audience for this order is responsible Flight Standards offices, aviation safety inspectors (ASI), Aircraft Certification Offices (ACO), Aviation Safety Engineers (ASE), designees (Designated Engineering Representatives (DER), Organization Designation Authorizations (ODA), and Designated Airworthiness Representatives (DAR)), and others engaged in the approval process for major repairs, major alterations, and the data associated with each. For the purpose of this order, the use of the term “ASI” includes DARs authorized to approve data in support of major repairs or alterations when performing work in accordance with Federal Aviation Administration (FAA) Order 8000.95, Designee Management Policy.



FAA Order 8300.16A CHG 1

- SUBJ: Major Repair and Alteration Data Approval
 - This order provides guidance on the responsibilities and requirements for the approval of technical data associated with major repairs or alterations. Types and sources of technical data are discussed. Considerations that must be addressed in the development of technical data to substantiate major repairs or alterations are also addressed.
 - This order does not provide guidance for making decisions on major or minor changes in type design.



ELIGIBILITY CONSIDERATIONS FOR FIELD DATA APPROVAL

- The following lists contain method(s) that may be used for approval of data supporting major alterations to type certificated (TC) and Supplemental Type Certificated (STC) products. These lists are not all-inclusive, and each alteration should be evaluated on a case-by-case basis. Consult each section that concerns the aeronautical product. Additionally, aviation safety inspectors (ASI) should review current notices, advisory circulars (AC), etc., for specific types of installations that have been identified as candidates for field data approval. The legend is as follows:



ELIGIBILITY CONSIDERATIONS FOR FIELD DATA APPROVAL

- 1. **STC.** Items with the letters “STC” identify changes that are determined to be major changes to type design (ref 14 CFR 21.93) and require an STC.
- Taking into consideration the complexity of a broad range of applications concerning major alterations, inspectors occasionally encounter a situation in which the guidance material identifies “STC”, but the applicant feels the change doesn't warrant approval as a major change to the product's type design.
- The applicant may request a reclassification for the specific alteration. See paragraph 4. “Reclassification Process”.



ELIGIBILITY CONSIDERATIONS FOR FIELD DATA APPROVAL

- 2. **EVL**. Data supporting items designated ‘Evaluation’ by the letters “EVL” may be eligible for approval by means other than a STC, depending on the scope and complexity of the alteration.
- These items will not automatically qualify for a field approval; they require evaluation and review of guidance to determine if the field approval process may be applied and is appropriate.
- The ASI may seek assistance from the appropriate ACB if necessary, in making determinations of items listed as “EVL”.



ELIGIBILITY CONSIDERATIONS FOR FIELD DATA APPROVAL

- 3. **ENG.** Data supporting items designated “Engineering” by the letters “ENG” may be eligible for approval by means other than a STC, but may not qualify for field approval.
- This data may be obtained from a Designated Engineering Representative (DER), Organization Designation Authorization (ODA) approved engineering data, or through an ACB coordinated field approval.



ELIGIBILITY CONSIDERATIONS FOR FIELD DATA APPROVAL

- **4. Reclassification Process.** If the legend indicates an STC is required, but the applicant believes that the change does not warrant an STC, the applicant may request a reclassification for the specific alteration.
- Likewise, if the legend indicates EVL or ENG, but the FAA determines that the alteration/repair constitutes a major change to type design and therefore requires an STC, the applicant will be notified of that determination but still may request a reclassification for the specific alteration.



ELIGIBILITY CONSIDERATIONS FOR FIELD DATA APPROVAL

- a. The applicant will forward the request for reclassification to the local Flight Standards District Office (FSDO). The FSDO should ensure that a complete request includes at a minimum:
 - (1) A description of the alteration to include information justifying the reclassification and identification of the product it is being installed on.
 - (2) The correct identification of the section in the Major Repair/Alteration Job Aid against which a reclassification is being requested, including the revision status of the job aid.



ELIGIBILITY CONSIDERATIONS FOR FIELD DATA APPROVAL

- b. Each FSDO will evaluate the request based on regulatory requirements including a collaborative decision that involves the ASI, office management, and the associated Aircraft Certification Service (AIR) office.
 - (1) If the FSDO does not concur, they will notify the applicant with an explanation why the reclassification request was inappropriate. The applicant may request the FSDO review of a non-concur using FAA Consistency and Standardization Initiative (CSI) procedures.
 - (2) If the FSDO supports the reclassification and believes further consideration is warranted, the FSDO will send their concurrence, along with the request to the appropriate Aircraft Certification Branch preferably by electronic communication.



ELIGIBILITY CONSIDERATIONS FOR FIELD DATA APPROVAL

- c. The ACB will evaluate the request from an engineering standpoint using an interdependent process involving the FSDO ASI, FSDO Management. AIR should be used to collaboratively reach a decision on the reclassification appeal request.
 - (1) If the ACB does not concur with the reclassification request, the ACB will notify the FSDO with an explanation as to why the reclassification request was inappropriate. The FSDO will forward this to the applicant.
 - (2) The ACB will then return the reclassification request with the Approval or Denial to the FSDO.
 - (3) The FSDO will then inform the applicant that the repair or alteration does, or does not require a STC, as applicable, and will evaluate the package accordingly.



ELIGIBILITY CONSIDERATIONS FOR FIELD DATA APPROVAL

NOTE:

- The FSDO should ensure that the applicant has referenced the concurrence on the FAA Form 337 prior to issuing the field data approval or documenting the alteration with approved data.



NORMAL, UTILITY, ACROBATIC, AND COMMUTER CATEGORY AIRPLANES

The following list applies to aircraft certificated under Title 14 of the Code of Federal Regulations (14 CFR) parts 23 and 31 (or earlier regulations), Special Federal Aviation Regulation (SFAR) 41, or Joint Aviation Regulation (JAR) 22.

This section does not apply to aircraft certified under 14 CFR 23, after amendment 23.64.



AC 120-78B:
Electronic Signatures, Electronic Recordkeeping, and
Electronic Manuals



DRAFT: AC 120-78B Change 1

- AC 120-78B: Electronic Signatures, Electronic Recordkeeping, and Electronic Manuals
- 1.9.2 FAA Acceptance.
 - With the exception of the items that require FAA approval (see paragraph 1.9.1 above), FAA acceptance will be used for certificate holders to use electronic signatures, electronic recordkeeping systems, and electronic manual systems to satisfy the requirements of 14 CFR parts 91K, 121, 125, 133, 135, and 145.



DRAFT: AC 120-78B Change 1

- 1.9.5 There is No Requirement for the Issuance of OpSpec A025 for 14 CFR Part 61, 63, 65, 91 (Excluding 91K), 129, 137, 145, or 147.
- OpSpec/MSpec/TSpec/LOA A025 does not apply to operations under these parts.
- However, the FAA recommends that all certificate holders follow the guidelines for electronic signatures, records, and manuals as set forth in the AC, regardless of whether or not approval, acceptance, or authorization is required.



DRAFT: AC 120-78B Change 1

- If a required signature, record, or manual provided in an electronic format or application does not contain the key elements or does not follow the guidelines set forth in this AC, the FAA may question its validity.
- If the FAA determines that an electronic signature, record, or manual is missing key elements, does not follow the guidelines, or is otherwise unacceptable, the FAA office with oversight responsibility will notify the certificate holder in writing.
- Upon receiving notification, it is incumbent upon the certificate holder to make the appropriate corrections.



Rulemaking Committees



ICA Aviation Rulemaking Committee

- § 21.50 Instructions for continued airworthiness and manufacturer's maintenance manuals having airworthiness limitations sections.
 - (b) The holder of a design approval, including either a type certificate or supplemental type certificate for an aircraft, aircraft engine, or propeller for which application was made after January 28, 1981, must furnish at least one set of complete Instructions for Continued Airworthiness to the owner of each type aircraft, aircraft engine, or propeller upon its delivery, or upon issuance of the first standard airworthiness certificate for the affected aircraft, whichever occurs later.
 - The Instructions for Continued Airworthiness must be prepared in accordance with §§ 23.1529, 25.1529, 25.1729, 27.1529, 29.1529, 31.82, 33.4, 35.4, or part 26 of this subchapter, or as specified in the applicable airworthiness criteria for special classes of aircraft defined in § 21.17(b), as applicable.



CPR Aviation Rulemaking Committee

- § 21.101 Designation of applicable regulations.
 - (a) An applicant for a change to a type certificate must show that the change and areas affected by the change comply with the airworthiness requirements applicable to the category of the product in effect on the date of the application for the change and with parts 34, 36, and 38 of this chapter. Exceptions are detailed in paragraphs (b) and (c) of this section.



CPR Aviation Rulemaking Committee

- § 21.101 Designation of applicable regulations.
 - (b) Except as provided in paragraph (g) of this section, if paragraphs (b)(1), (2), or (3) of this section apply, an applicant may show that the change and areas affected by the change comply with an earlier amendment of a regulation required by paragraph (a) of this section, and of any other regulation the FAA finds is directly related.
 - (1) A change that the FAA finds not to be significant.
 - (2) Each area, system, component, equipment, or appliance that the FAA finds is not affected by the change.
 - (3) Each area, system, component, equipment, or appliance that is affected by the change, for which the FAA finds that compliance with a regulation described in paragraph (a) of this section would not contribute materially to the level of safety of the product or would be impractical.



CPR Aviation Rulemaking Committee

- § 21.101 Designation of applicable regulations.
 - (c) An applicant for a change to an aircraft (other than a rotorcraft) of 6,000 pounds or less maximum weight, to a non-turbine rotorcraft of 3,000 pounds or less maximum weight, to a level 1 low-speed airplane, or to a level 2 low-speed airplane may show that the change and areas affected by the change comply with the regulations included in the type certificate.
 - However, if the FAA finds that the change is significant in an area, the FAA may designate compliance with an amendment to the regulation incorporated by reference in the type certificate that applies to the change and any regulation that the FAA finds is directly related, unless the FAA also finds that compliance with that amendment or regulation would not contribute materially to the level of safety of the product or would be impractical.



CPR Aviation Rulemaking Committee

- § 21.19 Changes requiring a new type certificate.
 - Each person who proposes to change a product must apply for a new type certificate if the FAA finds that the proposed change in design, power, thrust, or weight is so extensive that a substantially complete investigation of compliance with the applicable regulations is required.



AEA/ARSA Joint Resources

- FAA Part 5 to 145 Gap Analysis (SMS)
- SMS Integration Webinar Series
 - <https://aero.aea.net/collections?category=sms>
- Fabrication Work Request
 - <https://aea.net/repairstationresources/pdf/FabricationWorkRequest.docx>
- Advisories
 - U.S. Canada MIP
 - U.S. Europe MIP - SMS
 - 14 CFR 43.9 recordkeeping
 - 14 CFR 91.417 recordkeeping



Thank You!

Now ...

Opening & Awards Ceremony
Trinity Ballroom

